

OFFICE OF THE SECRETARY

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March 16, 2020

The Honorable Robert Perry
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012

Re: Casey Macoy David
CDCR No: G14689
Case No: BA315610-03
Date of Sentence: April 09, 2008

Dear Honorable Robert Perry:

The purpose of this letter is to provide the court with the authority to resentence inmate Casey David, G14689, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate David has not received any serious Rules Violation Reports since March 23, 2015. Inmate David is currently assigned in the California Prison Industry Authority Optical Optician Department in Data Entry. His supervisor notes he is a good worker, dependable, progressing, and had received a promotion. Inmate David also participates in Freedom to Choose and Timelist Self-Help Support Groups and is a Certified Peacemaker. He has received a letter of support along with 28 Laudatory and Self-Help Participation Chrono's from Custody Staff, and Group Sponsors acknowledging his commitment, and dedication to these Self-Awareness, and Improvement Groups as well as his incarcerated behavior.

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Inmate David met the standards of the General Educational Development and received his High School Equivalency Certificate at Calipatria State Prison on March 24, 2010. Staff state inmate David is a good programmer, does not give the housing unit staff any issues, and no one has heard of any problems between inmate David and other staff.

Having reviewed the enclosed documentation it appears that inmate David's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office